

Sewa Suraksha Sahkari Awas Samiti Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 5 February 2025 · WRIT - C No. - 42085 of 2024 · **Interim stay of coercive recovery against landowner; licensee free to proceed against occupier.**

HEADNOTE

Prima facie, unpaid dues of a temporary construction connection taken by an occupier who disclosed the petitioner as owner cannot be recovered by auctioning the owner's land. Clause 6.15, as invoked, authorises recovery from the person who took the connection as arrears of land revenue. Coercive action against the owner stayed; Department at liberty to proceed against the occupier. Merits listed.

FACTUAL SUMMARY

The petitioner housing society owns the land. Respondent no. 7, M/s Sarasth Propbuild Pvt. Ltd., took a temporary construction connection as occupier, disclosing the petitioner as owner on the application. Bills on that connection went unpaid. After failing to recover from the occupier, the Electricity Department proceeded against the petitioner-owner and sought to auction the land. The Department invoked Supply Code clause 6.15 as permitting recovery of unpaid dues from the person who took the connection, as arrears of land revenue.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

occupier dues not recoverable by auction of owner's land

HOLDING

Where the temporary connection was taken by an occupier who had disclosed the petitioner as owner, the Court was unable to see how the owner's land could be sold in auction for the occupier's unpaid dues. Clause 6.15, as relied on, entitled the licensee to recover from the person who had taken the connection, as arrears of land revenue. Coercive action against the petitioner stayed till the next listing; the Department remained free to proceed against respondent no. 7. ¶ 2-3, 7-8

FLAG Court described cl. 6.15 as recovery of the connection-holder's dues as arrears of land revenue, not the two-year billing bar.

PRINCIPLE TAGS

clause-6.15-two-year-bar-mandatory-licensee-duty-to-act Prima facie, unpaid dues of a temporary construction connection taken by an occupier who disclosed the petitioner as owner cannot be recovered by auctioning the owner's land. Clause 6.15, as invoked, authorises recovery from the person who took the connection as arrears of land revenue.. ¶ 2-3, 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER-OWNER CAN BE MADE LIABLE FOR ELECTRICITY CONSUMED BY RESPONDENT NO. 7

Matter requires consideration; detailed counter affidavit directed. ¶ 4-6